SUPERIOR COURT OF CALIFORNIA, COUNTY OF ALAMEDA

Rene C. Davidson Courthouse

Brendan Ngehsi Newanforbi Plaintiff/Petitioner(s) vs. California Highway Patrol et al Defendant/Respondent (s)	No. 26CV191136 Date: 08/29/2026 Time: 12:45 AM Dept: 25 Judge: Jenna Whitman ORDER Sustaining Demurrer In Part, with Leave to Amend

PROCEDURAL AND LEGAL BACKGROUND AND ALLEGATIONS. Brendan Ngehsi Newanforbi ("Petitioner") has filed a Petition for Writ of Mandate seeking the issuance of writ relief and declaratory relief against the California Highway Patrol ("CHP") and individual respondents Gerardo Serrato ("Serrato"), Gary Paul ("Paul"), and Eric Dutra ("Dutra") (collectively, "Respondents"). The Petition challenges the CHP's refusal to execute a Federal Immigration Form I-918 Supp. B U Nonimmigrant Status Certification (the "I-918 Form" or "I-918") submitted by Petitioner following his allegedly false arrest by CHP officers.

By way of background, under federal immigration law, a noncitizen immigrant may apply for an immigration status benefit if: (I) the alien has suffered physical or mental abuse as result of being victim of criminal activity; (II) alien possesses information concerning criminal activity; (III) alien is being helpful in investigating criminal activity; and (IV) violated laws of the united states or occurred in the united states. (8 U.S.C. § 1101(a)(15)(U)(i).) "[T]he criminal activity referred to in this clause is that involving one or more of the following or any similar activity in violation of Federal, State, or local criminal law: rape; torture; trafficking; incest; domestic violence; sexual assault; abusive sexual contact; prostitution; sexual exploitation; stalking; female genital mutilation; being held hostage; peonage; involuntary servitude; slave trade; kidnapping; abduction; unlawful criminal restraint; false imprisonment; blackmail; extortion; manslaughter; murder; felonious assault; witness tampering; obstruction of justice; perjury; fraud in foreign labor contracting (as defined in section 1351 of title 18); or attempt, conspiracy, or solicitation to commit any of the above mentioned crimes." (8 U.S.C. § 1101, subd. (a)(15)(U)(iii).)

California law also governs certain aspects of this process. Penal Code, section 679.10(g)(1) provides in relevant part: "'"Upon the request of the victim, ..., a certifying official from a certifying entity shall certify victim helpfulness on the Form I-918 Supplement B certification, when the victim was a victim of a qualifying criminal activity and has been helpful, is being helpful, or is likely to be helpful to the detection or investigation or prosecution of that qualifying criminal activity. The certifying entity shall forward completed Form I-918 Supplemental B certification to the victim, ..."

California law further provides, "If a certifying entity does not certify a Form I- 918 Supplement B certification, they shall provide a written explanation for the denial of the Form I-918 Supplement B certification. The written denial shall include specific details of any reasonable requests for cooperation and a detailed description of how the victim refused to cooperate." (Pen. Code, § 679.10, subd. (i)(2).)

Petitioner alleges he submitted a completed Form I-918 Supp. B to the CHP's Dublin Area offices on 4/9/2026, which respondent Officer Serrato, as the alleged Captain and Commander of CHP's Dublin Area station, denied on 4/20/2026. Serrato's rejection letter states:

> "A thorough review of this incident was conducted. Unfortunately, this incident does not meet the standard of qualifying criminal activity identified in Section 679.10 of the California Penal Code (PC), nor does it meet the standards of the Immigration and Nationality Act Sectioh [sic] 101(a)(15)(U)(iii). Additionally, this review found no substantially similar qualifying criminal activity as defined in Section 679.10(d) PC. Therefore, your request to certify your Form I-918, Supplement B, U Nonimmigrant Status Certification, was denied.

(Petition, Ex. 1.)

Petition alleges an entitlement to writ relief based upon Respondents' (1) failure to perform a mandatory duty under Penal Code section 679.10(b); (2) to Comply with the Reason-Giving Requirement for the Denial (§ 679.10(i)(2)); and (3) to apply rebuttable presumption of helpfulness (§ 679.10(h)). Petitioner also seeks related declaratory relief. Additional allegations of the Petition, to the extent relevant, are incorporated in the analysis below.

Respondent CHP has filed a demurrer, in which individual respondents also join.

APPICLABLE LEGAL STANDARD. "A demurrer tests the legal sufficiency of the factual allegations in a [pleading]." (Redfearn v. Trader Joe's Co. (2018) 20 Cal.App.5th 989, 996.) The Court must determine "whether the [pleading] alleges facts sufficient to state a cause of action [or other claim for relief] or discloses a complete defense." (Id.) The court assumes "the truth of the properly pleaded factual allegations, facts that reasonably can be inferred from those expressly pleaded and matters of which judicial notice has been taken." (Id.) "As a general rule in testing a pleading against a demurrer the facts alleged in the pleading are deemed to be true, however improbable they may be," unless the "complaint contains allegations of fact inconsistent with attached documents, or allegations contrary to facts which are judicially noticed." (Del E. Webb Corp. v. Structural Materials Co. (1981) 123 Cal.App.3d 593, 604.) "The court does not, however, assume the truth of contentions, deductions or conclusions of law." (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.) Courts "give the complaint a reasonable interpretation, reading it as a whole and its parts in their context." (Goncharov v. Uber Techs., Inc. (2018) 19 Cal.App.5th 1157, 1165.)

ANALYSIS. Respondents demur on several grounds, which are taken in turn.

Ministerial Duty to Certify Petitioner's I-918 Form. Petitioner alleges that he was the victim of

the following crimes enumerated in § 1101(a)(15)(U)(iii) in connection with his alleged wrongful arrest for driving while intoxicated (DUI) shortly before 1:00 a.m. on the morning of Friday, 11/1/2024 by CHP officers not named as respondents to the Petition: False Imprisonment/Unlawful Criminal Restraint; Felonious Assault/Battery; Obstruction of Justice; and Perjury.

Respondent CHP argues (and the other Respondents join) that the act of evaluating and certifying an I-918 Form is inherently discretionary, such that there can be no "ministerial duty" to certify a request, including Petitioner's, and no writ relief available. However, Respondent also acknowledges that writ relief may lie for an abuse of that discretion. Respondent then argues that "Petitioner's factual allegations do not support his bare legal conclusions that he was the victim of" any of the claimed crimes. In essence, the CHP asks the Court to determine that, based upon the facts alleged in the Petition (including its attachments) the CHP and Serrato cannot have abused their discretion in declining to certify Petitioner's I-918 Form.

Petitioner alleges that at the time of the incident, he was lawfully parked and chose to pull over and rest due to fatigue (Pet. ¶ 34.) Petitioner also alleges that he was not intoxicated, exhibited no signs of impairment, and was arrested solely for refusing to take a PAS test. (Id., ¶¶ 37-38.) He alleges that there was no probable cause for his arrest, and that contradictions in the evidence support his contention that the evidence against him constituted fabrication and perjury. (Id., ¶¶ 44-48.)

Petitioner's own Petition, particularly the attachments, undermines his credibility in some respects and includes information that tends to suggest probable cause for arrest. For example, Petitioner alleges that he is professionally employed as a truck driver, but the exhibits to his Petition disclose that at the time of his 11/1/2024 arrest, he was not driving a commercial truck, but rather a rented Tesla Model Y. (Petition Exh. 5 at p. 2 at 00:55:25 and Exh. 6.) Petitioner was apparently en route to his home in Stockton when he pulled over onto the shoulder of Interstate-580 (I-580) at a little after midnight and took a nap in the Tesla. (Id., Exh. 5 at p.3 at 00:57:30.) After asking Petitioner if he had been drinking, which he denied, the officers asked Petitioner to step out of the vehicle and for his driver's license. One of the officers found an empty can of Mike's Hard Lemonade, an alcoholic beverage, in the Tesla. Petitioner denied that he consumed the drink while he had been parked there or previously. (Id. at pp. 4-6 and Petition ¶ 47.) When the officers administered field sobriety tests, Petitioner resisted one of the tests. (Pet., Exh. 5 at pp. 8-9.) One of the officers then requested that Petitioner take a preliminary, voluntary alcohol screening test. (Id. at p. 10.) Plaintiff refused to take the test, and the officer arrested him. (Ibid.) In sum, Petitioner was parked on the shoulder of an interstate highway sleeping in his vehicle at approximately in the early morning hours with an open alcohol container in this car, and he refused to submit to a preliminary alcohol test when investigating CHP officers requested he do so. (People v. Thompson (2006) 38 Cal.4th 811, 818 ["Probable cause exists when the facts known to the arresting officer would persuade someone of 'reasonable caution' that the person arrested committed a crime]; see also Veh. Code, §§ 23152(a), 23222(a), 23612(a).)

The CHP contends that the allegations in the Petition are misleading and undermined, in some respects, by Petitioner's own transcription of the dashcam, and that the facts cannot possibly support a finding that he was the victim of obstruction of justice or perjury. Petitioner argues that his allegations, taken as true, are sufficient to plead a claim that the CHP had a duty to certify his

I-918, and the demurrer improperly asks the Court to resolve disputed merits questions. The Court agrees that the kind of weighing of facts Respondents seek "frames an issues for trial, not demurrer." (Committee on Children's Television, Inc. v. General Foods Corp. (1983) 35 Cal.3d 197, 213-214.)

If, at the trial on the merits, the Court were to credit Plaintiff's allegations that neither he nor his vehicle smelled of alcohol, that he showed no signs of impairment in talking with the officers or in performing the physical field sobriety tests he agreed to perform, and that the arresting officers lied about it in their police report, it could reasonably find probable cause for arrest was lacking, which could support a finding that the CHP abused its discretion in refusing to certify Petitioners Form I-918. (See People v. Wolterman (1992) 11 Cal.App.4th Supp. 15, 18; Espinoza v. Shiomoto (2017) 10 Cal.App.5th 85, 101-102.) Thus, Respondents' demurrer to the first cause of action is OVERRULED.

Reason-Giving Cause of Action. Respondents also challenge the sufficiency of Petitioner's pleading as to the second, "reason-giving" cause of action. The Penal Code requires a certifying entity, when declining to certify a Form I-918, to "provide a written explanation for the denial of the Form I-918 Supplement B certification. The written denial shall include specific details of any reasonable requests for cooperation and a detailed description of how the victim refused to cooperate." (Pen. Code, § 679.10, subd. (i)(2).) Respondents are correct that the only specificity the statute requires concerns a requestor's failure to *cooperate* with reasonable requests for cooperation. Here, however, the denial was not based upon Petitioner's noncooperation; it was based upon the failure to "meet the standard of qualifying criminal activity." (CHP Denial Letter, Pet. Ex. 1.)

As outlined above, the denial letter did provide an explanation. The underlying incident did not fall within any of the statutorily identified crimes which would qualify the application for certification. There is no basis for requiring more detail here, because the statute only requires specificity as to noncooperation. Under the canon of statutory interpretation *expresio unius est exclusion alterius* – the expression of one thing is the exclusion of another; thus, we read the statute to say that such detail is required only for noncooperation, but not to other cited reasons for rejection.

Even if such detail were required, it is immaterial here, where noncooperation was not the basis for denial. It would appear that there are no circumstances under which Petitioner could amend to remedy this defect. Thus, the Demurrer to the Second Cause of Action for Failure to Comply with Reason Giving Requirement is SUSTAINED WITHOUT LEAVE TO AMEND.

Rebuttable Presumption of Helpfulness. Accepting Petitioner's allegations that he "cooperated with every investigative channel available to him and has never refused or failed to provide any information or assistance reasonably requested" (Pet. ¶ 4), the allegation appears to be immaterial, where the Petition admits that refusal to cooperate was not a reason for denial. Petitioner's request was denied for a wholly independent reason (no proof of qualifying criminal activity) such that CHP did not need to consider whether Petitioner had cooperated. Thus, there was no opportunity to apply the presumption, and it is plainly not applicable. Thus, the Third Cause of Action has no merit as a matter of law. Petitioner cannot plead additional facts to remedy this defect, as the reason for rejection is memorialized in the CHP letter. (Petition Ex. 1.)

Thus, the demurrer is SUSTAINED WTIHOUT LEAVE TO AMEND as to the third cause of action.

Declaratory Relief. Upon further reflection, the Court agrees with Respondent that Petitioner has not stated a valid claim for declaratory relief. The Fourth Cause of Action does not seek declarations concerning the respective rights or duties of the parties, but pure questions of law. Respondents' other arguments are less persuasive, and Petitioner specifically seeks leave to amend to narrow the requested declaratory relief to the concrete controversy at hand. Thus, the demurrer to the fourth cause of action for declaratory relief is SUSTAINED WITH LEAVE TO AMEND.

ORDER. The CHP's Demurrer is OVERRULED as to the first cause of action; SUSTAINED without leave to amend as to the second and third causes of action; and SUSTAINED with leave to amend as to the fourth cause of action. If Petitioner elects to amend, he shall file and serve an amended Petition, consistent with this decision, within 20 days of notice of entry of order. Respondents shall file a responsive pleading within 20 days thereafter.

At the hearing, Petitioner stipulated to dismiss respondents Dutra and Paul. Thus, the hearing on the demurrers filed by those individual Respondents will be dropped as moot.

The Hearing on Demurrer Demurrer to Petition for Writ of Mandate; filed by Gary Paul, in his official capacity as Lieutenant of the California Highway Patrol Dublin Area; (Respondent) CRS# 892736633033 scheduled for 09/18/2026, the Hearing on Demurrer Demurrer to Petition for Writ of Mandate; filed by G. Serrato, in his official capacity as Captain and Commander of the California Highway Patrol Dublin Area; (Respondent) CRS# 487924635411 scheduled for 09/18/2026, and the Hearing on Demurrer Demurrer to Petition for Writ of Mandate CRS# 238548651553 scheduled for 09/18/2026 are vacated .

The Initial Case Management Conference scheduled for 09/02/2026 is continued to 10/28/2026 at 04:00 PM in Department 25 at Rene C. Davidson Courthouse .

Dated : 08/29/2026

Jenna Whitman / Judge